

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

20230930-DK-BUTTERFLY-1, INC.	X	
	:	
	:	FMC Docket No. 25-01
	:	
Complainant,:	:	
	:	
vs.	:	
	:	
BAL CONTAINER LINE CO., LIMITED,	:	
	:	
	:	
	:	
Respondent.:	:	
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	X	

**RESPONDENT BAL CONTAINER LINE CO., LIMITED'S OPPOSITION
TO COMPLAINANT'S MOTION TO COMPEL**

TABLE OF CONTENTS

	<u>Page</u>
I. INTRODUCTION.....	6
II. LEGAL STANDARD	9
III. MUCH OF WHAT BBY SEEKS FROM BAL IS IRRELEVANT TO THE QUESTION AT ISSUE IN THIS LITIGATION	9
IV. BBY VIOLATED FMC RULES OF PRACTICE BY FILING A 34-PAGE MOTION WITHOUT LEAVE.....	11
V. HARASSING REQUESTS REGARDING REFUNDS/WAIVERS, OR BAL’S FINANCIALS, ARE INAPPROPRIATE (RFP NOS. 11, 14, 15, AND 19, AND INTERROGATORIES 8 AND 11)	11
VI. SEARCHES PERFORMED REVEAL NO RESPONSIVE DOCUMENTS (RFP NOS. 1-2, 4-5 AND INTERROGATORY NOS. 5-6).....	13
VII. INTERROGATORY NO. 15 – OVERBROAD, UNDULY BURDENSOME, AND BAL LACKS SUFFICIENT INFORMATION TO ANSWER.....	16
VIII. INTERROGATORY NO. 2 - BAL DOES NOT HAVE AN OBLIGATION TO CREATE A LOG AND DID NOT KEEP SUCH A LOG	18
IX. DEMURRAGE AND DETENTION POLICIES AND PROCEDURES: BAL IS CONTINUING TO SEARCH FOR RESPONSIVE DOCUMENTS (RFP’S 7-8).....	18
X. BBY’S “ALL FACTS” AND “ALL DOCUMENTS” REQUESTS ARE CLEARLY INAPPROPRIATE (RFP NOS. 23, 24, 25 AND INTERROGATORY 4).....	19
XI. BAL HAS RESPONDED TO REQUESTS TO IDENTIFY PERSONS WITH KNOWLEDGE, BUT BBY FOR SOME REASON HAS STILL MOVED TO COMPEL	21
XII. DWELL TIME – BAL DOES NOT REGULARLY MAINTAIN THIS DATA AND BBY ALREADY HAS THIS DATA FOR THE CONTAINERS AT ISSUE	22
XIII. DOCUMENTS PERTAINING TO OTHER CUSTOMERS AND FMC MATTERS ARE NOT RELEVANT AND PROTECTED BY MULTIPLE PRIVILEGES.	24
A. RELEVANCE.....	24
B. REGULATORY COMMUNICATION PRIVILEGE.....	26
C. ATTORNEY-CLIENT PRIVILEGE.....	27
XIV. BAL HAS AGREED TO PROVIDE ANY DOCUMENT RETENTION POLICY DOCUMENTS THAT IT CAN LOCATE AFTER A REASONABLE SEARCH	28
XV. BBY’S VAGUE, COMPOUND, AND OVERBROAD REQUESTS REGARDING DOCUMENTS AND COMMUNICATIONS RELATING TO	

CONDITIONS AFFECTING THE FLOW OF CARGO ARE IMPROPER AND THE INFORMATION IT LIKELY SEEKS IS PUBLICLY AVAILABLE	28
XVI. CONFUSING REQUESTS REGARDING THE FLOW OF CARGO.....	29
XVII. CONCLUSION	30

TABLE OF AUTHORITIES

Federal Cases

<i>Aldapa v. Fowler Packing Co.</i> , 310 F.R.D. 583 (E.D. Cal. 2015)	20
<i>Cardenas v. Dorel Juvenile Group, Inc.</i> , 230 F.R.D. 611 (D. Kan. 2005).....	17
<i>Food Mktg. Inst. v. Argus Leader Media</i> , 588 U.S. 427 (2019).....	27
<i>Hardrick v. Legal Servs. Corp.</i> , 96 F.R.D. 617 (D.D.C. 1983).....	25
<i>Hartley Pen Co. v. U.S. Court of the S. Dist. of Cal.</i> , 287 F.2d 324 (9th Cir. 1961)	26
<i>Hiskett v. Wal-Mart Stores, Inc.</i> , 180 F.R.D. 403 (D. Kan. 1998).....	20, 21
<i>Lawrence v. First Kansas Bank & Trust Co.</i> , 169 F.R.D. 657 (D. Kan. 1996).....	19, 20
<i>Mackey v. IBP, Inc.</i> , 167 F.R.D. 186 (D. Kan. 1996).....	17
<i>Miles v. Shanghai Zhenhua Port of Machinery Co., LTS.</i> , No. C08-5743 FDB, 2009 WL 3837523 (W.D. Wash. Nov. 17, 2009)	20
<i>Moller v. Martian Sales, Inc.</i> , No. CV 24-228, 2025 WL 886720 (E.D. La. Mar. 21, 2025).....	12
<i>National Parks and Conservation Ass’n v. Morton</i> , 498 F.2d 765 (D.C. Cir. 1974).....	27
<i>Nat’l Acad. of Recording Arts & Scis., Inc. v. On Point Events, LP</i> , 256 F.R.D. 678 (C.D. Cal. 2009).....	26
<i>Prasad v. George Washington University</i> , 323 F.R.D. 88 (D.D.C. 2017).....	25
<i>Profl Recovery Servs. v. GE Capital Corp.</i> , No. 06-2829, 2009 WL 137326 (D.N.J. Jan. 15, 2009).....	26
<i>S.E.C. v. Goldstone</i> , No. CIV 12–0257, 2014 WL 4349507 (D.N.M. Aug. 23, 2014).....	20
<i>Scholz Design Tezas, LLC v. Lampert Yards – US LBM, LLC</i> , No. 18-CV-4074-CJW, 2019 WL 13216582 (N.D. Iowa Sept. 4, 2019)	20
<i>Se. Pennsylvania Transportation Authority Auth v. Orrstown Fin. Servs., Inc.</i> , No. 1:12-CV-00993, 2022 WL 3567340 (M.D. Pa. Aug. 18, 2022)	27
<i>Southeastern Pennsylvania Transp. Authority v. Caremarkpcs Health, L.P.</i> , 254 F.R.D. 253 (2008)	28
<i>Twigg v. Pilgrim’s Pride Corp.</i> , No. 3:05-CV-40, 2007 WL 676208 (S.D.N.Y. Mar. 1, 2007).....	20
<i>U.S. v. ChevronTexaco Corp.</i> , 241 F.Supp.2d 1065 (N.D. Cal. 2002)	27
<i>United States v. Kellogg Brown & Root Servs.</i> , 284 F.R.D. 22 (D.D.C. 2012).....	25, 26

Federal Statutes

46 U.S.C. § 41102(c)	10
46 U.S.C. § 41104(a)(10).....	10

Federal Regulations

46 C.F.R. § 502.141(e)(1).....	9
46 C.F.R. § 502.141(e)(2)(ii)	9
46 C.F.R. § 502.141(j)	9
46 C.F.R. § 502.146(2)(v).....	23
46 C.F.R. § 502.71(d)	11
46 C.F.R. §§ 545.5(d)&(e).....	11

FMC Decisions

TZ SSE Buyer LLC v. Yang Ming Marine Transport Corp.....	7,10
TCW, Inc. v. Evergreen Shipping Agency (America) Corp.....	10
Green Master Int'l Freight Servs. Ltd. FMC Dk. No. 01-10, 2001 WL 1420471 (ALJ Oct. 12, 2001).....	12
Visual Comfort & Co. v. COSCO Shipping Lines Co. Ltd.....	7,10,13
Marine Transport Logistics, Ltd. v. CMA CGM, S.A.....	13
Maher Terminals LLC v. Port Auth. of N.Y. & N.J. FMC Dkt. No. 08-03	20
Odyssey Stevedoring of Puerto Rico, Inc. v. Puerto Rico Ports Auth.....	21
American President Lines, Ltd. v. Cyprus Mines Corp. and Cyprus Minerals Co.....	25

**RESPONDENT BAL CONTAINER LINE CO., LIMITED'S OPPOSITION
TO COMPLAINANT'S MOTION TO COMPEL**

Respondent Bal Container Line Co., Limited ("Bal") respectfully submits this Opposition Brief in response to the Motion to Compel Production of Documents and Information ("Motion to Compel") filed by Complainant 20230930-DK-Butterfly-1, Inc. ("BBBY"). Bal concurrently herewith submits its Motion for Enlargement of Page Limits, the Declaration of Liu Qingzhi ("Liu Decl."), the Declaration of Parker Zhu ("P. Zhu Decl."), the Declaration of Cathy Sun ("Sun Decl."), the Declaration of Zoe Zhu ("Z. Zhu Decl."), the Declaration of Serena Gao ("Gao Decl."), and the Declaration of Bryce Cullinane ("Cullinane Decl.") in support of this Opposition Brief.

I. INTRODUCTION

BBBY's Requests for Production of Documents and Interrogatories directed to Bal require mental gymnastics to understand and comprehend, and even then, Bal still remains perplexed regarding many of them. The BBBY discovery requests were clearly written by someone intending to seek every conceivable piece of relevant and irrelevant evidence, and the result is a set of requests for documents and information that are confusing, incredibly overbroad, and compound. BBBY's requests ask Bal to engage in an unduly burdensome, impractical, and punitive search for documents and information, much of which does not exist or can be easily obtained from terminal operators or BBBY's agents.

Bal is a small company located in China and in 2021/2022 it operated a handful of vessels between the Far East and the U.S. West Coast. Bal ran its first transpacific sailing from China to Los Angeles/Long Beach in June 2021. For collection of demurrage fees its relied upon the terminals, and for collection of detention fees it relied upon its hired local agent (Norton

Lilly). Bal published its rates and its policies on detention and demurrage, and then gave its terminal(s) and agent the reigns to collect those fees. Unlike other large ocean carriers, Bal did not have any direct carriage contract or service contract with BBY. (Liu Decl., ¶ 2.) Upon information and belief, all BBY's cargo was imported by its NVOCCs who then found the Chinese NVOCCs to book space from Bal. (Liu Decl., ¶ 2.) Despite this, BBY has not served any third-party subpoenas in this case.

Because Bal's customers are third parties (such as NVOCC's) who did not disclose the name of the underlying shipper in their communications with Bal, Bal has yet to find any direct communications with BBY and no documents at Bal (thus far, that it can locate) bear the name of BBY or Bed, Bath & Beyond. (Liu Decl., ¶ 11; P. Zhu Decl., ¶ 2; Sun Decl., ¶ 2; Z. Zhu Decl., ¶ 2; Gao Decl., ¶ 2.) Declarations from senior Bal employees, regarding the searches performed, are attached hereto. Bal is cooperating with BBY and is continuing to search for relevant and responsive documents. But BBY must be reminded of the scope of relevance in this case: "whether a D&D charge is reasonable is a fact-specific inquiry that balances: 'how a particular charge fits within the incentive principle to further the primary purpose of promoting freight fluidity' with other arguments and circumstances 'raised by the parties to determine if they are relevant to assessing reasonableness and if so, whether they outweigh the finding under the incentive principle. **Due to the fact-specific nature of whether D&D charges are just and reasonable, it is appropriate to review the charges related to each individual container in order to determine whether a charge was unjust or unreasonable.** This is precisely what Chief Judge Wirth did in *Hapag-Lloyd A.G. v. T/SSE Buyer LLC v. Yang Ming Marine Transport Corp.*, FMC Dkt. No. 24-10, 2025 WL 1083815, at *1 (ALJ March 24, 2025) (emphasis added). Bal is searching for documents regarding its detention and demurrage policies

and procedures, producing names of those Bal employees with knowledge regarding those procedures, and is cooperating with BBY to search for other documents regarding the containers at issue. But the reality is that most of the information relevant to the issues of this case are in BBY's possession or third-parties' possession (the NVOCC's, the terminals, and the local agents). BBY is apparently upset that Bal does not have many responsive documents thus far, and that Bal is not willing to cower in the face of BBY's unreasonably confusing and overbroad requests. This is not a winning basis for the Motion to Compel, which was filed in the face of an offer from Bal's counsel Bal to extend the deadline and work toward further resolution of discovery items.¹

The Motion to Compel appears aimed at increasing the cost of this baseless litigation. BBY and Bal, through counsel, had been speaking for months before this lawsuit was filed. (Cullinane Decl., ¶ 2.) Bal always engaged in good faith with BBY, but BBY could never respond to this simple request: "Bal will engage in good faith regarding any containers where BBB[Y] can prove that demurrage was charged while the container was not available for pickup, or regarding any containers where detention was charged but the terminal indicated that no appointments were available for the return." (Cullinane Decl. ¶ 3, Exhibit 1: December 12, 2024 email from Bryce Cullinane to Zachery Morris.) The requested information was never provided. (Cullinane Decl. ¶ 3.) This case clearly has no merit, and BBY seems intent upon forcing Bal to spend money litigating overly broad and confusing discovery requests, to put pressure on Bal. This is an inappropriate use of the discovery process. For the reasons set forth herein, including

¹ On the day before the deadline for filing motions to compel, counsel for Bal served amended discovery responses upon counsel for BBY and stated: "As mentioned on the phone today, I have no intention of jamming you up. If you would like to stipulate to a short extension on the deadline to bring your motion to compel, let me know." (Cullinane Decl., ¶ 5, Exhibit 2: April 22, 2024 email from Bryce Cullinane to Zachery Morris.)

the compromises made by Bal herein, Bal requests that the Motion to Compel be denied.

II. LEGAL STANDARD

The Commission's Rules permit discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense." 46 C.F.R. § 502.141(e)(1) (emphasis added). On motion or on its own, the Presiding Officer may limit the frequency or extent of discovery otherwise allowed by these rules if the Presiding Officer determines that:

(A) The discovery sought is unreasonably cumulative or duplicative, **or can be obtained from some other source that is more convenient, less burdensome, or less expensive;**

(B) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or

(C) The burden or expense of the proposed discovery outweighs its likely benefit, considering the needs of the proceeding, the amount in controversy, the parties' resources, the importance of the issues at stake in the action, and the importance of the discovery in resolving the issues.

46 C.F.R. § 502.141(e)(2)(ii) (emphasis added). **The Commission's Rules also permit the Presiding Officer to "issue an order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense."** 46 C.F.R. § 502.141(j) (emphasis added).

III. MUCH OF WHAT BBY SEEKS FROM BAL IS IRRELEVANT TO THE QUESTION AT ISSUE IN THIS LITIGATION

BBY, in its Complaint (and reiterated in its Motion to Compel) alleges two causes of action under The Shipping Act of 1984 ("Shipping Act"), accusing Bal of "assessing improper detention and demurrage charges" and "unreasonably refusing to deal or negotiate" with BBY regarding those detention and demurrage charges. Motion To Compel at 1. BBY argues in its Motion to Compel that it is entitled to a broad swath of Bal's private financial information, Bal's communications with a wide range of its customers (and the FMC), essentially all documents relating to COVID-related supply-chain issues, and a host of other documents and information

that is NOT limited to the questions at issue in this case: Were the detention and demurrage charges allegedly paid by BBY² compliant with The Shipping Act? Much of BBY's discovery has nothing to do with that question.

BBY and its attorneys have clearly not reviewed, for example, the recent FMC Initial Decision in *TZ SSE Buyer LLC v. Yang Ming Marine Transport Corp*, FMC Dkt. No. 24-10, 2025 WL 1083815, at *1 (ALJ March 24, 2025). There, Complainant TZ alleged, in part, that Respondent Yang Ming had “violated the Shipping Act of 1984, as amended, by charging Complainant unjust and unreasonable detention and demurrage in violation of 46 U.S.C. § 41102(c) and refusing to deal or negotiate detention and demurrage charges in violation of 46 U.S.C. § 41104(a)(10).” *Id.* There, Judge Ambrow noted:

whether a D&D charge is reasonable is a fact-specific inquiry that balances: ‘how a particular charge fits within the incentive principle to further the primary purpose of promoting freight fluidity’ with other arguments and circumstances ‘raised by the parties to determine if they are relevant to assessing reasonableness and if so, whether they outweigh the finding under the incentive principle. **Due to the fact-specific nature of whether D&D charges are just and reasonable, it is appropriate to review the charges related to each individual container in order to determine whether a charge was unjust or unreasonable.** This is precisely what Chief Judge Wirth did in *Hapag-Lloyd A.G.* . .

Id. at *19, citing *TCW, Inc. v. Evergreen Shipping Agency (America) Corp.*, FMC Dkt. No. 1966(I), 2025 WL 516256, at *4-11 (FMC Feb. 13, 2024) (emphasis added). The Judge continued:

The Interpretive Rule provides a variety of considerations that go into determining whether D&D charges are just and reasonable. One factor is the: ‘existence, accessibility, content, and clarity of policies implementing demurrage and detention practices and regulations, including dispute resolution policies and practices and regulations regarding demurrage and detention billing[.]’ including

² Bal does not believe that any of the charges were paid directly by BBY to Bal, especially because Bal and BBY had no direct relationship.

contact information, timeframes, and required information. Another is: ‘the extent to which regulated entities have clearly defined the terms used in demurrage and detention practices and regulations, the accessibility of definitions, and the extent to which the definitions differ from how the terms are used in other contexts.’ (46 C.F.R. §§ 545.5(d)&(e)).

Id. at *21. Absent from the analysis is (a) any mention of the finances of the respondent, (b) the corporate structure of the respondent, (c) the respondent’s dealing with other customers or with the FMC, and (d) other unrelated topics that BBY now seeks to perform discovery upon.

IV. BBY VIOLATED FMC RULES OF PRACTICE BY FILING A 34-PAGE MOTION WITHOUT LEAVE

The FMC rules of practice could not be clearer regarding the page limit for a motion to compel: “Neither the motion nor the response may exceed 10 pages, excluding exhibits or appendices, without leave of the presiding officer.” 46 C.F.R. § 502.71(d). Here, BBY did not seek or receive leave of the Presiding Officer to file its 35-page Motion to Compel. For this reason alone, BBY’s motion should be summarily rejected, and BBY should be ordered to engage in further “meet and confer” efforts with Bal (as Bal’s counsel suggested before the Motion to Compel was filed) to resolve the disputes at issue in the Motion to Compel. Concurrent with the filing of this Opposition Brief, Bal is filing its Motion to Enlarge Page Limits, with the Presiding Officer.

V. HARASSING REQUESTS REGARDING REFUNDS/WAIVERS, OR BAL’S FINANCIALS, ARE INAPPROPRIATE (RFP NOS. 11, 14, 15, AND 19, AND INTERROGATORIES 8 AND 11)

RFP No. 15 seeks documents showing any refunds or waivers by Bal of detention or demurrage charges, to any customer, and the reasons, for the relevant time period. RFP Nos. 11, 14, and 19, and Interrogatories Nos. 8 and 11 all seek the private and non-public financial information of Bal. Under federal law, one party may only obtain financial document discovery

if (1) the other party puts their financial condition at issue or (2) the requesting party can show that the information is relevant to a claim or defense. *See Moller v. Martian Sales, Inc.*, No. CV 24-228, 2025 WL 886720 at *4 (E.D. La. Mar. 21, 2025). Neither applies here. First, Bal has not placed its income or earning capacity at issue anywhere in these proceedings. Second, and despite BBY's contentions otherwise, Bal's financial information is not relevant to any claim or defense under the Shipping Act. BBY seems to argue that because it purportedly paid Bal demurrage and detention fees, and those fees were conceivably included in Bal's overall revenue, BBY can access massive swaths of Bal's confidential financial information. Motion to Compel at 31. Bal's financial information, including total revenue and detention and demurrage revenue across all shippers, has no bearing on whether the fees BBY paid were reasonable. BBY even concedes that this financial information would only be the "result of [Bal's] practices that [BBY] has challenged in this proceeding"—not the practices themselves. Mot. at 31. This distinction matters because the parties are only litigating whether the fees incurred by BBY were reasonable, not their results or impact.

BBY relies on *Green Master Int'l Freight Servs. Ltd.*, FMC Dk. No. 01-10, 2001 WL 1420471 (ALJ Oct. 12, 2001) to argue that corporate financial information is relevant to claims under The Shipping Act. This is unconvincing however because more recent FMC decisions have held that financial information is entirely irrelevant to claims under the Shipping Act. For example, in *Visual Comfort & Co. v. COSCO Shipping Lines Co. Ltd.*, FMC Dkt. No. 24-01, 2024 WL 3514622, at *9, (ALJ July 17, 2024) decided last year, Judge Crovella stated requests for "generalized data regarding [the respondent's] income, revenue and the like" were not

relevant to any alleged Shipping Act violation.³ In *Marine Transport Logistics, Ltd. v. CMA CGM, S.A.*, FMC Dkt. No. 22-23, 2024 WL 474879, at *8 (ALJ Jan. 31, 2024), Chief Judge Wirth denied a motion to compel production of documents seeking “revenue from demurrage, detention or storage charges”—the very same documents requested BBBY here—because the complainant could not show they were relevant to the alleged Shipping Act violation or to the complainant’s injury. Bal’s financial information, including refunds or waivers which may have been issued to customers, has no bearing on whether the fees incurred by BBBY were reasonable, and so Bal should not be required to produce such documents. Indeed, BBBY’s argument, that carrier profitability is a factor in determining the reasonableness of demurrage and detention charges under the Shipping Act, taken to its logical conclusion, would mean that if two carriers assess the same charge in the same circumstances, one could be in violation of the Shipping Act because it is profitable, while the other would not because it is not profitable. That absurd result demonstrates the fallacy in BBBY’s argument. The Motion to Compel as to RFP Nos. 11, 14, 15, and 19, and Interrogatories 8 and 11 should be denied.

VI. SEARCHES PERFORMED REVEAL NO RESPONSIVE DOCUMENTS (RFP NOS.

1-2, 4-5 AND INTERROGATORY NOS. 5-6)

RFP’s 1, 2, 4 and 5, and Interrogatory numbers 5 and 6, all seek some form of information or documents regarding direct communications between Bal and BBBY, or between their respective representatives regarding BBBY. RFP Nos. 1 and 2 seek “documents sufficient to identify all persons” who communicated on Bal’s behalf with BBBY, and vice versa; RFP No. 4 seeks all communications between BBBY and Bal; RFP No. 5 seeks “all documents and

³ Despite disagreeing with the documents’ relevance to the proceedings, Judge Crovella stated she would respect the parties’ joint decision, outside the motion to compel, to produce limited demurrage documents. *Id.*

communications concerning BBY or BBY Cargo.” Interrogatory Nos. 5 and 6 ask Bal to identify those people who communicated on Bal’s behalf, and on BBY’s behalf, “concerning BBY or BBY Cargo.”

The Parties have no dispute regarding the time period at issue in this case, which is June 2021 through 2022. It should come as no surprise to this Tribunal or BBY that for these years, email communication was (and remains) the nearly-exclusive means of communication between Bal and its customers, especially because Bal is in the business of international shipping. (Liu Decl., ¶ 2.) Bal does not generally deal face-to-face with its customers. (Liu Decl., ¶ 3.) As such, Bal is certain that any responsive communications (and the information sought) to the requests at issue (RFP Nos. 1-2, 4-5; Interrogatory Nos. 5-6), if existing, would exist in the form of email communications. (Liu Decl., ¶ 3.)

Bal is a relatively small company, employing approximately twenty-eight employees. (Liu Decl., ¶ 4.) The company employed roughly thirty-five employees during the time period at issue. (Liu Decl., ¶ 4.) However, many of Bal’s employees do not work exclusively for Bal. (Liu Decl., ¶ 5.) Rather, they work for Bal and any number of Bal’s affiliated companies. (Liu Decl., ¶ 5.)

Bal does not have the ability to run email searches across the entire Bal email system. (Liu Decl., ¶ 6.) The IT Department that services Bal has confirmed that the only way they know of for search terms to be searched in Bal email boxes is for individual custodians to search their own email boxes. (Liu Decl., ¶ 6.)

Here, Bal agreed to have key and senior custodians within its organization perform manual searches of their email boxes for the following terms: “Bed Bath”, BBB, BBY, Bedbath, or Bedbath&beyond. **Mr. Q. Liu, the head of Bal’s operations in the United States,**

Mr. Parker Zhu, the Assistant of the President of Bal, Ms. Cathy Zhu, the head of Bal's Equipment Control Department, Ms. Zoe Zhou, the head of Bal's Marketing Department, and Ms. Serena Gao, the Client Manager of Bal's Marketing Department, all conducted manual searches of their emails for the above terms, but none of them found any emails containing the terms. They have each signed declarations, which are attached to this Opposition Brief, attesting to the fact that they ran these searches and no documents were located. (Liu Decl, ¶ 11; P. Zhu Decl., ¶ 2; Sun Decl., ¶ 2; Z. Zhu Decl., ¶ 2; Gao Decl., ¶ 2.)

Bal did not communicate (to its present knowledge) directly with anyone at BBBY, except for the communications in 2023 and 2024 wherein BBBY and its lawyers demanded refunds from Bal. (Liu Decl., ¶ 8.) Furthermore, when working with booking agents and third parties regarding booking space on Bal vessels, those communications did not generally reference the underlying shipper, such as BBBY. (Liu Decl., ¶ 9.) As stated in response to one of the requests at issue: "BBBY's booking agents booked space with Bal in their own name, and would not typically (if ever) mention BBBY. Complainant is in a better position to know the requested information than Respondent is." Excerpt of Response to RFP No. 1.

Even bills of lading issued would not reference BBBY. (Liu Decl., ¶ 10.) For example, attached to the Declaration of Q. Liu, is a copy of a sample house bill of lading, issued by Bal's affiliate Ningbo, that Bal was able to determine is a bill of lading issued for cargo owned by BBBY. (Liu Decl., ¶ 10, Exhibit A: Bal Bill of Lading Including BBBY Cargo.) Bal was only able to determine that this bill of lading applies to BBBY cargo by examining the Excel sheet of data provided by BBBY, in which it identified dates and container numbers for its cargo. (Liu Decl., ¶ 10.) That bill of lading shows that BBBY is nowhere listed, and Bal would have no way of knowing (without identifying information from BBBY) that this document pertained to Bal.

(Liu Decl., ¶ 10.)

In light of the fact that there is no apparent direct communication with BBY, and no readily known documents that identify BBY, it makes sense that no responsive documents have been found by manual email searches. (Liu Decl., ¶ 7.) These two critical pieces of information were communicated by counsel for Bal to counsel for BBY (Cullinane Decl., ¶ 4), and yet, for some strange reason, BBY still chose to bring its Motion to Compel. Indeed, Bal states that even if a vendor were hired and that vendor did a search across all emails, it still does not think that any responsive emails would be located, making the hiring of a vendor (as suggested by BBY) a fruitless waste of money. (Liu Decl., ¶ 11.)

Because no responsive documents or information have been found after Bal conducted a reasonable and diligent search (Bal has produced (attached hereto) declarations from senior level managers at Bal attesting to this fact), and because Bal does not work with third parties on the basis of who the underlying shipper is (i.e., BBY), Bal asks that the Presiding Officer deny BBY's Motion to Compel on RFP Nos. 1-2, 4-5 and Interrogatory Nos. 5-6.

VII. INTERROGATORY NO. 15 – OVERBROAD, UNDULY BURDENSOME, AND BAL LACKS SUFFICIENT INFORMATION TO ANSWER

Interrogatory No. 15 seeks an enormous amount of information, and includes multiple vague terms: “describe in detail *any issues* affecting the *flow of containers*, including without limitation congestion, crowding, stacking or inaccessibility of containers, delays, lack of appointments, dual appointment requirements, timing of appointments, or delays, shortages or availability issues concerning employees, operators, equipment, space, rail service, trucking, chassis, or chassis pools.” (emphasis added). To begin, the information requested is best sought

by means of a deposition subpoena, or document subpoena, directed to a terminal operator, who would be in the best position to provide this information. Bal had no control over the “flow of containers” once they landed on the dock of the terminal on the West Coast. (Liu Decl., ¶ 12.) Bal therefore is not the best source of this type of information because Bal, as a Vessel Operating Common Carrier, is not privy to all the details regarding these topics, as the terminal operator is. (Liu Decl., ¶ 13.) Furthermore, to attempt to describe and speculate regarding “any issues affecting the flow of containers” would require writing multiple pages of information (Liu Decl., ¶ 13) and the rules of discovery do not require such a burdensome exercise. *Mackey v. IBP, Inc.*, 167 F.R.D. 186, 197 (D. Kan. 1996) (“A party resisting facially overbroad or unduly burdensome discovery need not provide specific, detailed support. **Interrogatory 7(b) seeks the identity of all documents ‘pertaining to’ comparisons or rankings of the plants of IBP for ‘any ... reason.’ The latter clause makes the interrogatory so open-ended and overly broad that IBP cannot fully answer without undue burden.** Use of omnibus phrases such as ‘pertaining to,’ moreover, often makes an interrogatory overly broad and unduly burdensome on its face. *Cardenas v. Dorel Juvenile Group, Inc.*, 230 F.R.D. 611, 623 (D. Kan. 2005). **Such phrases often require the answering party to engage in mental gymnastics to determine what information may or may not be remotely responsive.** *Id.* In this instance the use of the phrase ‘pertaining to’ makes Interrogatory 7(b) overly broad.

In addition, the request here calls for information “for any origin, port of loading, destination, or port of discharge.” It is clear that any “origin” or “loading” ports are not relevant here because BBY’s lawsuit pertains to detention and demurrage fees charged at the port of unloading. Also, BBY has yet to inform Bal which ports are at issue (the ports of unloading). Even if the remainder of the request were not objectionable (it is), Bal would be unable to

respond because BBY has not identified which ports its products flowed through, while in Bal's possession. For the foregoing reasons, Bal requests that the Motion to Compel on Interrogatory No. 15 be denied.

**VIII. INTERROGATORY NO. 2 - BAL DOES NOT HAVE AN OBLIGATION TO
CREATE A LOG AND DID NOT KEEP SUCH A LOG**

Interrogatory No. 2 asks Bal to create a log of documents that Bal reviewed or referenced in responding to the interrogatories. This request is inappropriate because Bal did not keep a log of documents referenced in order to respond to the interrogatories. Requiring Bal to do so now is a task aimed at increasing the burden of this case upon Bal. Bal is producing documents in response to the RFPs, and so there is no practical purpose of Interrogatory No. 2. On these bases, Bal asks that the Motion to Compel on Interrogatory No. 2 be denied.

**IX. DEMURRAGE AND DETENTION POLICIES AND PROCEDURES: BAL IS
CONTINUING TO SEARCH FOR RESPONSIVE DOCUMENTS (RFP'S 7-8)**

RFP Nos. 7-8 seek "all documents and communications concerning" Bal's "regulations, practices, policies, procedures, protocols, or strategies, or conditions" relating to a wide variety of detention and demurrage topics, in 2021 and 2022. As discussed above, counsel for Bal offered to extend the deadline for BBY to move to compel documents and information, in an effort to resolve discovery disputes. BBY chose not to enter into such a stipulation, and instead filed its Motion to Compel. BBY's choosing to do so was, and remains, premature because Bal is continuing to search for responsive documents.

These two RFPs are objectionable because they (a) are extremely compound, (b) are overbroad ("all documents and communications concerning . . ."), and (c) are not narrowly tailored to the port or cargo at issue in this case. Containing numerous requests for numerous

categories of documents, each of these two RFPs could be easily split into multiple RFPs. Furthermore, as stated in the responses to each: This case involves “a fact-specific and fact-intensive analysis pertaining to each individual container at issue in the case[]”, and not irrelevant documents pertaining to company-wide practices. In addition, RFP No. 8 is especially odd because Bal does not have any control over when cargo is picked up from a terminal (as discussed in Section XX). Nonetheless, Bal is working to locate any documents that it can find which reflect internal communications regarding, or internal documents regarding, Bal’s detention and demurrage fee policies in the years 2021 and 2022. Beyond this narrowly tailored search, these two requests are unreasonable and so BBY’s request to have Bal undergo an extremely burdensome search for irrelevant documents should be rejected.

**X.BBY’S “ALL FACTS” AND “ALL DOCUMENTS” REQUESTS ARE CLEARLY
INAPPROPRIATE (RFP NOS. 23, 24, 25 AND INTERROGATORY 4)**

RFP Nos. 23, 24, 25, and Interrogatory No. 4 seek “all documents” or “all facts” relating to Bal’s Answer, Bal’s claims or defenses, or Bal’s case. In its Motion to Compel, BBY attempts to sidestep the overly broad language employed in Interrogatory No. 4 by arguing that it is “narrowly construed to identify the key facts supporting [Bal’s] [A]nswer.” Motion to Compel at 20. Yet BBY fails to address how this interrogatory could be at all narrowly construed when it explicitly asks for all facts and all documents supporting every response in Bal’s Answer “that was anything other than an unqualified admission.” *Id.* at 13. BBY argues that this contention interrogatory is proper as “numerous courts” have diverged from the approach described in *Lawrence v. First Kansas Bank & Trust Co.*, 169 F.R.D. 657 (D. Kan. 1996). This argument is unavailing. BBY cites no proceeding before the Federal Maritime Commission allowing such broadly phrased contention interrogatories. In fact, in a similar proceeding before the

Commission, the presiding officer rejected contention interrogatories like BBY's and adopted the same standard elucidated in *Lawrence*:

Interrogatories should not require the answering party to provide a narrative account to fits case. They should not duplicate initial disclosures. The court will generally find them overly broad and unduly burdensome on their face to the extent they ask for "every fact" which supports identified allegations or defenses. Interrogatories may, however, properly ask for the "principal or material" facts which support an allegation or defense.

Maier Terminals LLC v. Port Auth. of N.Y. & N.J., FMC Dkt. No. 08-03, Mem. & Order on Discovery Mots. at 8 (ALJ July 23, 2010) (emphasis added) (quoting *Hiskett v. Wal-Mart Stores, Inc.*, 180 F.R.D. 403, 404-405 (D. Kan. 1998)⁴. The *Lawrence* standard should apply with particular force here as BBY does not even request facts underlying identified allegations or defenses but all responses in Bal's Answer which are not unqualified admissions.

BBY's reliance on *S.E.C. v. Goldstone*, No. CIV 12-0257, 2014 WL 4349507 (D.N.M. Aug. 23, 2014) and *Twigg v. Pilgrim's Pride Corp.*, No. 3:05-CV-40, 2007 WL 676208 (S.D.N.Y. Mar. 1, 2007) do not impact this determination because other federal courts continue to uphold the *Lawrence* standard. For example, in 2015, the Eastern District of California noted that contention interrogatories, "which systematically track all of the allegations in an opposing party's pleadings, and that ask for 'each and every fact' and application of law to fact that supports the party's allegations are an abuse of the discovery process because they are overly broad and unduly burdensome." *Aldapa v. Fowler Packing Co.*, 310 F.R.D. 583, 591 (E.D. Cal. 2015) (quoting *Miles v. Shanghai Zhenhua Port of Machinery Co., LTS.*, No. C08-5743 FDB, 2009 WL 3837523, at *1 (W.D. Wash. Nov. 17, 2009)); accord *Scholz Design Tezas, LLC v. Lampert Yards – US LBM, LLC*, No. 18-CV-4074-CJW, 2019 WL 13216582, at *5 (N.D. Iowa

⁴ The discovery order from *Maier* is available at <https://www2.fmc.gov/readingroom/docs/08-03/92FEFD06B95345F09875CE32BFDAB747.pdf/>

Sept. 4, 2019).

Furthermore, regarding BBY's contention interrogatory, "requesting 'every fact' in support of a party's legal contentions [is] generally considered to be overly broad and unduly burdensome. A more reasonable request would be limited to the identification of the material or principle facts and documents supporting the legal contentions." *Odyssea Stevedoring of Puerto Rico, Inc. v. Puerto Rico Ports Auth.*, FMC Docket No. 02-08, 29 S.R.R. 1392, 1394 (ALJ Dec. 12, 2002) (citations omitted); *see also Hiskett v. Wal-Mart Stores, Inc.*, 180 F.R.D. 403, 404-405 (D. Kan. June 19, 1998). By its terms, Interrogatory No. 4 requires BBY to narrate the case, providing documentary and factual support for nearly every paragraph in the Answer. Both proceedings before the FMC and federal caselaw deem this overly broad and burdensome. Bal's objection was proper and Bal should not be required to supplement its response.

XI. BAL HAS RESPONDED TO REQUESTS TO IDENTIFY PERSONS WITH KNOWLEDGE, BUT BBY FOR SOME REASON HAS STILL MOVED TO COMPEL

The strangest part of BBY's Motion to Compel is its discussion of RFP No. 6, and Interrogatories Nos. 5-8. BBY states that these requests seek "the full range of individuals who may have relevant knowledge regarding Respondent's detention and demurrage practices" Motion to Compel at 23. In its formal responses, Bal identified the following persons who work at Bal: Liu Qingzhi (the head of Bal's operations in the United States), Parker Zhu (the assistant to the President of Bal), and Cathy Sun (the head of Bal's Equipment Control Department). Bal also hereby further states that the following Bal employees may have knowledge regarding Bal's detention and demurrage practices: Ms. Zoe Zhou, the head of Bal's Marketing Department and Ms. Serena Gao, the Client Manager of Bal's Marketing Department. Other senior Bal executives may have knowledge regarding the matters at issue in this case, but those employees

disclosed by Bal have more fulsome knowledge. (Liu Decl., ¶ 14.) In light of the previously made, and current discourses, the Motion to Compel regarding RFP No. 6, and Interrogatories Nos. 5-8 should be deemed moot.

**XII.DWELL TIME – BAL DOES NOT REGULARLY MAINTAIN THIS DATA AND
BBBY ALREADY HAS THIS DATA FOR THE CONTAINERS AT ISSUE**

Again, it is important for this Tribunal and BBBY to understand that Bal had no control over a container once that container landed on the dock at a terminal. (Liu Decl., ¶ 12.) Typically, when a Bal vessel was approaching a terminal, Bal’s agent, Norton Lilly, would inform the consignee listed on the bill of lading (which was not BBBY) that the container was nearing the time for pickup. (Liu Decl., ¶ 15.) Then, upon information and belief, the consignee would process the container with customs, and appoint a trucking company to pick up the container. (Liu Decl., ¶ 16.) Upon information and belief, that trucking company was then required to make an online appointment with the terminal for pickup, based on each terminal's own practice and/or regulations. (Liu Decl., ¶ 16.) The window of availability was left to the discretion of the terminal and its interactions with the trucking company. (Liu Decl., ¶ 16.) There are a host of reasons for why the container may have been picked up promptly or left on the dock, none of which are within the control of Bal. (Liu Decl., ¶ 17.)

With the above background in mind, RFP No. 9 is odd, for a number of reasons. First, BBBY has already provided a spreadsheet to Bal that shows, on a container-by-container basis, the time that each container spent at the terminal, before it was picked up from the terminal (the “dwell time”). Before BBBY sent this data to Bal, Bal did not have easy access to this data. (Liu Decl., ¶ 18.) Bal presumes that BBBY obtained this data from its freight broker(s) or from a terminal(s) (or some combination of the two). (Liu Decl., ¶ 18.) As such, Bal does not

understand why BBY is asking for dwell time data from Bal.

Second, RFP 9 is inappropriate because it does not just seek documents, but it asks Bal to analyze the documents to create an “average dwell time” calculation. The Commission’s rules place no such obligation on Bal. *See* 46 C.F.R. § 502.146(2)(v) (responding party may either produce responsive documents as they are kept in the usual course of business or, upon request, label existing documents). Third, the request seeks dwell time data for places that are of no relevance to this lawsuit: The port of origin and the port of loading. It is undisputed that BBY is not seeking a refund in this lawsuit of charges incurred at any port of loading or port of origin, and so data from those locations is clearly not relevant.

Fourth, the request is not limited to BBY cargo or its containers, but seeks dwell time data for every single container that went through every single port that BBY cargo passed through. Such a request is incredibly overbroad and would require a herculean effort to find the data (much of which Bal does not believe it has). Fifth, and most importantly, Bal does not regularly maintain dwell time data because Bal is not in the business of running a cargo terminal. (Liu Decl., ¶ 19.) Indeed, the terminals collect demurrage fees for dwell time on behalf of Bal from trucking companies, take a percentage of those funds as a collection fee, and remit the remainder to Bal. (Liu Decl., ¶ 20.) Bal’s local agent collects detention fees for Bal, from trucking companies. (Liu Decl., ¶ 20.) In certain instances, Bal may receive from the terminal the dwell time data, to confirm the accuracy of the monies collected by the terminal, but this information is not limited to containers with BBY cargo and Bal does not have a practice of collecting, organizing, or storing that data. (Liu Decl., ¶ 21.) As such, and as communicated to BBY, Bal should not be forced to go on a wild goose chase through email inboxes to locate selected dwell time data and then determine on a container-by-container basis where the dwell

time information is, especially when BBBY already has this data (and may easily obtain further data from the terminals).

Sixth, Bal's response to RFP No. 9 clearly stated that "Complainant has not identified which terminals Respondent carried its cargo to." For some strange reason, this information is not contained in the Complaint, nor in the Motion to Compel. Seventh, the request is not limited as to time, making it further unreasonable and overbroad. Eighth and finally, even if Bal did regularly maintain dwell time data (it does not) it would not be relevant to the question at issue: Where the demurrage fees at issue reasonable under the Shipping Act? The dwell time of other containers (especially at port of loading or origin) which also Bal had no control over, are clearly irrelevant to that question. Here, the dwell time data for the containers at issue is in the possession of BBBY. For the above reasons, the Motion to Compel on RFP No. 9 should be denied.

**XIII.DOCUMENTS PERTAINING TO OTHER CUSTOMERS AND FMC MATTERS
ARE NOT RELEVANT AND PROTECTED BY MULTIPLE PRIVILEGES.**

RFP Nos. 17, 18, 22 and Interrogatory 17 seek all documents and information surrounding "any potential, threatened, or filed complaints by any Shipper against You with the Federal Maritime Commission or any allegation from a shipper alleging a violation by You of the Shipping Act" or "concerning any instances in which You have been accused or alleged, in any manner, of violating the Shipping Act or have been determined, found, or adjudged to have violated the Shipping Act." These requests seek documents and information that are not relevant, clearly aimed at prejudicing or harassing Bal, and are protected by multiple privileges.

A. RELEVANCE

"It is fundamental that the scope of discovery is not limitless and is restricted by

the concepts of relevancy.” *American President Lines, Ltd. v. Cyprus Mines Corp. and Cyprus Minerals Co.*, Docket No. 91-27, 26 S.R.R. 1227, 1234 (FMC Jan. 31, 1994). BBBY’s requests for a massive number of documents regarding Bal’s relationship with shippers other than Complainant, and with the FMC, constitute an impermissible and impossibly broad fishing expedition, including many documents bearing absolutely no relevance to the sole issue for which they are sought: Whether the particular detention and demurrage charges charged here were reasonable under The Shipping Act. Courts “frequently deny discovery when the party requests voluminous discovery where only a small fraction of the produced documents may be relevant. Courts often call such attempts ‘fishing expeditions.’” *United States v. Kellogg Brown & Root Servs.*, 284 F.R.D. 22, 36-37 (D.D.C. 2012) (finding that documents “relating to other contracts or other parties are not facially relevant to the case”). Courts should not “endorse ‘fishing expeditions,’ discovery abuse and inordinate expense involved in overbroad and far-ranging discovery requests,” but rather should “tailor discovery ‘to the issues involved in the particular case.’” *Id.* at 37 (quoting *Hardrick v. Legal Servs. Corp.*, 96 F.R.D. 617, 618 (D.D.C. 1983)). “[A]ll discovery is subject to the balancing test ... that requires a court to limit the discovery ‘otherwise allowed by these rules’ if the burden outweighs its likely benefit. *Prasad v. George Washington University*, 323 F.R.D. 88, 96-97 (D.D.C. 2017) (“Generally, discovery that is “too far removed” from allegations in the operative Complaint is disallowed.”); *see also Miranda v. Mahard Egg Farm, Inc.*, No. 4:19-CV-00092, 2019 U.S. Dist. LEXIS 160660, 2019 WL 4573637, at *10 (E.D. Tex. Sept. 20, 2019) (“As to the unnamed employees, it would be unduly burdensome and expensive to gather every document ever created for each employee . . . Indeed, to order such discovery would be tantamount to judicially sanctioning a fishing expedition.”).

Bal's relationships and dealings with its customers other than BBY has no bearing on this case—either directly or indirectly. BBY's requests for non-BBY customer complaints or refunds issued to other customers is exactly the type of fishing expedition that courts routinely frown upon. BBY's attempt to "cast a wide net for discovery of information in the hopes that something of use may come back is the essence of a fishing expedition precluded by the rule of proportionality." *See Prof'l Recovery Servs. v. GE Capital Corp.*, No. 06-2829, 2009 WL 137326, at *4 (D.N.J. Jan. 15, 2009). Regarding such confidential commercial information, "courts will normally hesitate to require disclosure of such matters" and require disclosure "only where such disclosure is relevant and necessary to the prosecution or defense of a particular case." *Hartley Pen Co. v. U.S. Court of the S. Dist. of Cal.*, 287 F.2d 324, 330-331 (9th Cir. 1961) (quotations omitted). Unless BBY can point to a need for disclosure rooted in a claim or defense, the information should remain protected. *See Nat'l Acad. of Recording Arts & Scis., Inc. v. On Point Events, LP*, 256 F.R.D. 678, 681 (C.D. Cal. 2009) ("Courts have not given trade secrets automatic and complete immunity against disclosure, but have in each case weighed their claim to privacy against the need for disclosure.") (quotation and alteration omitted).

Accordingly, the Presiding Officer should enter an order protecting Respondents from Complainant's attempts to obtain discovery of that entirely irrelevant matter. *See, e.g., United States v. Kellogg Brown & Root Servs.*, 284 F.R.D. 22, 37 (D.D.C. 2012)

B. REGULATORY COMMUNICATION PRIVILEGE

The Federal Maritime Commission requires substantial disclosures from Bal and other shippers to perform its regulatory functions. By fully complying with the Commission's requirements, shippers expect confidentiality in return. Federal courts in other contexts recognize the value in maintaining information disclosed to the government and its agencies as

confidential. *E.g., National Parks and Conservation Ass’n v. Morton*, 498 F.2d 765, 767 (D.C. Cir. 1974) (Freedom of Information Act Exemption 4) (“Unless persons having necessary information can be assured that it will remain confidential, they may decline to cooperate with officials and the ability of the Government to make intelligent, well-informed decisions will be impaired.”) (overruled on other grounds by *Food Mktg. Inst. v. Argus Leader Media*, 588 U.S. 427 (2019); *see also Se. Pennsylvania Transportation Authority Auth v. Orrstown Fin. Servs., Inc.*, No. 1:12-CV-00993, 2022 WL 3567340, at *18 (M.D. Pa. Aug. 18, 2022) (Bank Examination Privilege) (“The purpose of the privilege is to preserve and promote candor in communications between banks and their regulators, in an effort to promote effective supervision of banking institutions.”) This reasoning applies with equal force here and should serve as the basis to reject BBY’s request for confidential information exchanged between the FMC and Bal.

C. ATTORNEY-CLIENT PRIVILEGE

Customer complaints regarding detention and demurrage that are not resolved by the business, in consultation with the local agent, are escalated to the Bal legal department. (Liu Decl., ¶ 22.) Several cases support the application of attorney-client privilege to communications with in-house counsel when the primary purpose is legal advice. In *U.S. v. ChevronTexaco Corp.*, the court held that communications between corporate personnel and in-house counsel made for the purpose of securing legal advice are protected by the privilege *U.S. v. ChevronTexaco Corp.*, 241 F.Supp.2d 1065, 1076 (N.D. Cal. 2002). Similarly, in *Southeastern Pennsylvania Transp. Authority v. Caremarkpcs Health, L.P.*, the court affirmed that the privilege applies to communications with in-house counsel if the primary purpose is to gain or

provide legal assistance. *Southeastern Pennsylvania Transp. Authority v. Caremarkpcs Health, L.P.*, 254 F.R.D. 253, 258 (2008)

XIV. BAL HAS AGREED TO PROVIDE ANY DOCUMENT RETENTION POLICY

DOCUMENTS THAT IT CAN LOCATE AFTER A REASONABLE SEARCH

RFP Nos. 20 and 21 seeks a broad set of documents relating to the “retention or destruction of documents and communications” at Bal. Bal has already agreed to produce any documents it can locate after a reasonable search that could be construed to be document retention policies, and it has stated in its responses that “it has not destroyed any documents in response to these requests.” Bal is perplexed as to why BBY is moving to compel under RFP No. 21. It is unclear what, if anything, beyond the document retention policy documents of Bal, BBY is seeking here. Bal is pleased that BBY has clarified (for the first time in the Motion to Compel) that no privileged documents are sought. However, for the foregoing reasons, the Motion to Compel upon RFP No. 21 should be denied.

XV. BBY’S VAGUE, COMPOUND, AND OVERBROAD REQUESTS REGARDING

DOCUMENTS AND COMMUNICATIONS RELATING TO CONDITIONS

AFFECTING THE FLOW OF CARGO ARE IMPROPER AND THE INFORMATION

IT LIKELY SEEKS IS PUBLICLY AVAILABLE

RFP Nos. 10 and 13 are confusing. They seek “all communications” with a wide variety of listed categories of entities, and all “documents” regarding “any condition affecting the flow of cargo containers” or “the effects of port congestion” or “broader supply chain issues.” Bal objected that these requests seek an enormous number of documents, all of which are not relevant to the question at issue in this case, which is whether the specific containers at issue were charged detention and demurrage fees in violation of The Shipping Act. The requests are

incredibly compound and unreasonably broad; no court would enforce such unreasonably drafted requests. The Presiding Officer should deny the Motion to Compel on these two requests because they are improperly drafted, seek irrelevant information, are unduly burdensome, and the (likely) desired information about port congestion and the flow of containers during the pandemic are public and/or easily obtained from the source: The terminal operator(s), the trucking companies, and the local agents. As stated above, Bal is a China-based VOCC that worked with its local US-partners to manage the flow of containers once they reached the United States, and so those entities are the best source for the requested information.

For the same reasons as stated above, BBY's Motion to Compel on Interrogatory No. 16, regarding what, if anything, Bal did to "assist Shippers in connection with the flow of containers", should be denied. Not only is this request as vague, confusing, and overbroad as RFP Nos. 10 and 13, but Bal (again) was not "on the ground" on the West Coast. This request is better directed to the terminal(s) or Norton Lilly. Further, the movement of cargo at "origin" or the "port of loading" is clearly not relevant, making Bal wonder if these requests were drafted for this case, or merely copied and pasted from requests issued in another case.

XVI. CONFUSING REQUESTS REGARDING THE FLOW OF CARGO

Interrogatories Nos. 18 and 19, stated bluntly, make no sense, and even if they did, are overbroad. Interrogatory No. 18 appears to request policies and procedures, but it is unclear which are being requested because the request references Interrogatory No. 15, which is also hard to understand, and it adds the uncertain term "affected the flow". It then asks Bal to "describe in detail" the requested vague items. Interrogatory No. 19 is less clear, seeking that Bal "describe in detail any communications or agreements between You and any VOCC concerning conditions affecting the flow of containers . . . detention charges, demurrage charges, or any other

accessorial charges imposed . . .” To start, what is an “accessorial charge” and how can any agreement or communication with another VOCC be relevant to this case? Bal is itself a VOCC and, to Bal’s present knowledge, there are no other VOCCs at issue in this case. Indeed, BBY did not name any other respondents in this case. It is simply unclear how communications with other vessel operators could be relevant to this case, or what precisely BBY is seeking under this request. For these reasons, the Motion to Compel on Interrogatories Nos. 18 and 19 should be denied.

XVII.CONCLUSION

For the aforementioned reasons, Bal respectfully requests that the Presiding Officer deny BBY’s Motion to Compel.

Respectfully submitted this 29th day of April, 2025.

THEODORA ORINGHER PC



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 29th day of April, 2025, a true and correct copy of the foregoing **RESPONDENT BAL CONTAINER LINE CO., LIMITED'S OPPOSITION TO COMPLAINANT'S MOTION TO COMPEL** was served via electronic mail on:

Karl C. Huth

huth@huthreynolds.com

Matthew J. Reynolds

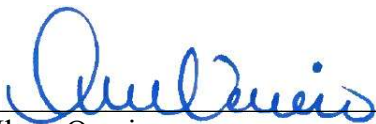
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